IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 212
(CAA)-07/ND/2022

IN THE MATTER OF:

Bhuwalka Makers Pvt. Ltd. And Lorikeets Builders Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 22.07.2022

CORAM:
SHRI. DHARMINDER SINGH,
HON'BLE MEMBER (J)

SHRI. L.N. GUPTA,
HON'BLE MEMBER (T)

PRESENT:

For the Applicant	:	Mr. Vishal Ganda, Ms. Pinki Sharma CS, Ms. Deepika Singla, CS
For the RD	:	Adv. Shankari Mishra
For the IT Dept.	:	Mr Ruchir Bhatia, Sr. Standing Counsel, Mr. Shlok Chandra, Jr. Standing Counsel, Ms. Mansie Jain, Advocate

ORDER

Ld. Counsel for the RD appeared and stated that the Applicant herein has not answered the queries till date, therefore, there they have not filed the reply. Let the same be filed before the next date of hearing. Ld. Proxy Counsel, Ms. Mansie Jain appeared on behalf of I.T. Department and sought adjournment for filing their Report. None appeared for the OL. On perusal of the order dated 20.05.2022, it is seen that two weeks' time was given to the Income Tax Department and OL to file their Response/Reports but they have not complied with the order.

Despite the fact that a period of more than two months has passed, they are failed to file the reply. In the interest of justice, last opportunity is granted to I.T. Department and OL to file the replies subject to deposit of cost of Rs. 5,000/- in the Prime Minister's Relief Fund. It is made clear that if the cost is not deposited and reports are not filed, their rights shall stand closed and no further opportunity shall be given. The fact of not filing the replies shall be brought to the notice of the concerned Commissioner of Income Tax and OL by the counsels concerned as well as the Court Officer/Registry.

List the matter on 12.09.2022.

(L.N. GUPTA)
MEMBER (T)

(DHARMINDER SINGH)
MEMBER (J)

Ashwani